cestui que trust was intended to take a vested interest, the *mode* in which, or the *time* when, the *cestui que trust* was to reap the benefit, is perfectly immaterial, and the entire interest may either be disposed of by the act of the *cestui que trust*, or may enure for the benefit of his creditors by operation of law on his bankruptcy. Thus, if the trust be to apply a fund for a person's "support, clothing and maintenance" (*g*), or to pay the interest of *a fund [*99] to a person for life "at such times and in such manner as the trustees shall think proper" (*a*), or "from time to time as and when it shall become due and payable" (*b*), or "in such smaller or larger portions, at such times immediate or remote, and in such way and manner as the trustees shall think best" (*c*), the discretion of the trustees is determined by the bankruptcy of the *cestui que trust*, and the entirety of the life estate enures for the benefit of the creditors. Even where the trustees were directed to pay the interest of a sum "to A. for life, or during such part thereof as the trustees should think proper, and at their will and pleasure, but not otherwise," and so that A. should not have any right, title, claim, or demand other than the trustees should think proper; and after A.'s decease, to pay the interest to his widow for her life, and after her decease to assign the principal and "all *savings or accumulations* of interest, if any," to the children, the Court thought, that, taking the whole instrument together, the trustees had no

(*g*) Younghusband *v.* Gisborne, 1 Coll. 400.

(*a*) Green *v.* Spicer, 1 R. & M. 395.

(*b*) Graves *v.* Dolphin, 1 Sim. 66.

(*c*) Piercy *v.* Roberts, 1 M. & K. 4.

incident to *cestui que trust's* interest, and the settlor is said to be able to tie up the estate as he will; Hyde *v.* Woods, 94 U. S. 523; Nichols *v.* Eaton, 91 U. S. 716; Campbell *v.* Foster, 35 N. Y. 361; White *v.* White, 30 Vt. 338; Shankland's App. 47 Pa. St. 113. If a trust is created for particular purposes and is consistent with the rule of perpetuities, it will be executed without interference; Loring *v.* Loring, 100 Mass. 340; Blackstone Bank *v.* Davis, 21 Pick. 42; Cole *v.* Littlefield, 35 Me. 439; Wetmore *v.* Truslow, 51 N. Y. 338; Genet *v.* Beekman, 45 Barb. 382; Wells *v.* McCall, 64 Pa. St. 207; Chase *v.* Chase, 2 Allen, 101; as if a trust is made for the support of one and wife and children; Hall *v.* Williams, 120 Mass. 344, which case see for effect of insolvency; also Nichols *v.* Eaton, 91 U. S. 716. For a learned and elaborate discussion of the whole question, see Gray's Restraints on Alienation.